

25STCV34214 25STCV34214

County: los-angeles

Division: Civil Law and Motion

Department: 510

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Case Number: 25STCV34214 Hearing Date: August 5, 2026 Dept: 510

No. 12 - Angela Perry, et al. v. Edwin Redway

Defendant Edwin Redway's Demurrer and Motion to Strike

Portions of Plaintiffs' Complaint

Defendant Edwin Redway demurs to Plaintiffs Angela Perry, trustee of the Perry Trust Agreement dated June 1, 2002, and Andrea Perry's complaint. Defendant also moves to strike portions of Plaintiffs' complaint referencing punitive damages. Plaintiffs did not file an opposition.

The Court finds there was no sufficient meet and confer between the parties.

California Code of Civil Procedure section 430.41(a) states that, before filing a demurrer, "the demurring party shall meet and confer in person, by telephone, or by video conference with the party who filed the pleading that is subject to demurrer for the purpose of determining whether an agreement can be reached that would resolve the objections to be raised in the demurrer." (CCP § 430.41(a).) A declaration setting forth such meet and confer efforts must accompany the demurrer. (CCP § 430.41(a)(3).) A motion to strike has identical meet and confer requirements. (See CCP § 435.5(a).)

The Court notes that there is no declaration filed in support of the demurrer or motion to strike, detailing meet and confer efforts. There is also no description of meet and confer efforts in the memorandum of points and authorities

The hearing on the demurrer and motion to strike will be

continued to allow parties time to meet and confer. Should the parties be unable to reach an agreement, Defendant should submit the required meet and confer declaration at least 16 court days before the next hearing as required under the Code.

Disposition

Defendant Edwin Redway's demurrer and motion to strike as to Plaintiffs Angela Perry, trustee of the Perry Trust Agreement dated June 1, 2002, and Andrea Perry's complaint are continued to September 8, 2026, at 8:30 am.